

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Kulig	Team: Team # 6	CCRB Case #: 201403821	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 02/26/2014 9:00 PM	Location of Incident: Opposite 263 West 152nd Street	18 Mo. SOL 8/26/2015	Precinct: 32
Date/Time CV Reported Mon, 04/07/2014 2:30 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 04/07/2014 2:30 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jaysen Basnight	29694	936178	032 PCT
2. POM Adlai Pinney	27724	946122	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Karina Bonilla	30570	953690	032 PCT
2. POF Melanie Paganmerriitt	27997	946090	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jaysen Basnight	Force: PO Jaysen Basnight pointed his gun at § 87(2)(b)	A . Unsubstantiated
B . POM Jaysen Basnight	Abuse: PO Jaysen Basnight stopped § 87(2)(b)	B . Exonerated
C . POM Adlai Pinney	Abuse: PO Adlai Pinney stopped § 87(2)(b)	C . Exonerated
D . POM Jaysen Basnight	Abuse: PO Jaysen Basnight searched the car in which § 87(2)(b) was an occupant.	D . Substantiated

Case Summary

§ 87(2)(b) filed this complaint in person at the CCRB on April 7, 2014 during his interview for an unrelated incident, CCRB Case # § 87(2)(b) (encl. 5A-5B).

At approximately 9:00 p.m. on February 26, 2014 in the vicinity of West 152nd Street, between 8th Avenue and Macombs Place in Manhattan, § 87(2)(b) was stopped in his vehicle by PO Jaysen Basnight and PO Adlai Pinney. The following allegations resulted:

- **Allegation A – Force: PO Jaysen Basnight pointed his gun at** § 87(2)(b) § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
- **Allegation B – Abuse of Authority: PO Jaysen Basnight stopped** § 87(2)(b)
- **Allegation C – Abuse of Authority: PO Adlai Pinney stopped** § 87(2)(b) § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- **Allegation D – Abuse of Authority: PO Jaysen Basnight searched the car in which** § 87(2)(b)
was an occupant. § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)

This case was ineligible for mediation because of § 87(2)(b)'s allegation that PO Basnight pointed his gun at him.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *a 6' tall, 268 lb. black male with black hair and brown eyes, was § 87(2)(b) old at the time of the incident.* § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on April 7, 2014 (encl. 6A-6C).

At approximately 9:00 p.m. on February 26, 2014, § 87(2)(b) was sitting in his vehicle, a blue 2006 Chevy Suburban, in a NYCHA parking lot for the Harlem River Complex, which is located across from 263 West 152nd Street in Manhattan. He is not a NYCHA resident but was waiting for a parking spot on the street. He stated that he was parked on the left side of the lot, next to a garage, but he did not indicate if he was in a parking spot. His engine was off, but he was listening to the radio. There were street lights illuminating the parking lot. He was wearing a black hoodie, dark gray jeans, and black work boots.

While § 87(2)(b) waited, an unmarked black Chevy Impala (license plate # § 87(2)(e), § 87(2)(b)) drove by, went around the block, and then pulled into the parking lot. The vehicle parked next to § 87(2)(b)'s vehicle so that the passenger windows of both vehicles were lined up. It was less than a foot away. § 87(2)(b) rolled his passenger window down. The passenger window of the police vehicle was also rolled down.

There were two officers in the vehicle. One of the officers, who § 87(2)(b) described as a two-hundred-fifty-pound, 6'1" tall, black male in his 40s with dark brown eyes and a hat, who was wearing plainclothes, was identified by the investigation as PO Jaysen Basnight. Although § 87(2)(b) stated

that PO Basnight was seated in the driver seat of the vehicle, the investigation determined that he was actually sitting in the passenger seat. The second officer, who § 87(2)(b) described as a 6' tall black male in his 30s or 40s with black hair, brown eyes, and a slender build, also wearing plainclothes, was identified by the investigation as PO Adlai Pinney. The investigation determined that PO Pinney was in the driver's seat of the vehicle.

According to § 87(2)(b) PO Pinney immediately got out of the vehicle and approached the driver's side of § 87(2)(b)'s car. While still in the police vehicle, PO Basnight drew his gun and pointed it at § 87(2)(b). While pointing it at § 87(2)(b) PO Basnight said, "Let me see your hands!" § 87(2)(b) put his arms out in front of him with his palms flat. He did not indicate where his hands were before this. PO Basnight then instructed him to place his hands on the steering wheel, to which he complied. PO Basnight exited the vehicle and holstered his gun.

PO Basnight approached the driver's side of § 87(2)(b)'s vehicle and stood at the door. § 87(2)(b) asked him what the problem was, and PO Basnight said he would let him know. He then requested § 87(2)(b)'s license and registration. § 87(2)(b) retrieved these documents from the "top compartment" and handed them to PO Basnight. PO Basnight viewed the registration and returned it to § 87(2)(b). He held onto his driver's license.

At this time, PO Basnight asked § 87(2)(b) to step out of the vehicle. § 87(2)(b) asked why, and PO Basnight told him to "just get out." § 87(2)(b) complied. PO Basnight told him to stand with PO Pinney at the back of the vehicle. § 87(2)(b) refused and said that he wanted to stand next to his vehicle, so PO Pinney came over and stood next to § 87(2)(b) on the driver's side.

PO Basnight entered § 87(2)(b)'s vehicle through the driver's side door and began searching. He looked under the front seat and inside the compartment in the arm rest, which was closed when § 87(2)(b) exited the vehicle. PO Basnight then went to the passenger side of the vehicle and searched there. He also opened the back trunk hatch and looked inside. PO Basnight did not remove anything. He did not say anything to § 87(2)(b) while he searched, and he never requested permission to do so. PO Pinney tried to make "small talk" with § 87(2)(b) but § 87(2)(b) did not want to talk.

While PO Basnight searched the vehicle, two additional uniformed officers arrived in a marked vehicle. § 87(2)(b) described the driver of that vehicle as a 5' tall, 25 to 30 year old Hispanic female with an average build and long black hair in a ponytail. He described the passenger as a 5' tall, 25 to 30 year old Hispanic female with a slim build and long black hair in a ponytail. These officers were identified by the investigation as PO Melanie Pagan-Merritt and PO Karina Bonilla. They spoke briefly with PO Pinney and then left. They were there for less than five minutes.

After PO Basnight was done searching, he asked § 87(2)(b) if all he was doing was waiting for a parking spot. § 87(2)(b) said, "That's what I told you." § 87(2)(b) did not indicate when he initially told this to PO Basnight. They continued going back and forth briefly. PO Pinney then wrote § 87(2)(b)'s information on his notepad. The officers told § 87(2)(b) to leave the parking lot because he was trespassing. The officers then left. § 87(2)(b) pulled out of the parking lot and double-parked on the street.

Attempts to Contact 911 Caller

On October 7, 2014, a call was placed to the ANI-ALI number listed on the Event Summary for Event # § 87(2)(b). The phone number did not accept incoming calls. Without any additional information for this caller besides the name "§ 87(2)(b)" he could not be reached.

NYPD Statements:

Subject Officer: PO JAYSEN BASNIGHT

- *PO Basnight, a 6' tall, 200 lb. black male with brown hair and brown eyes, was § 87(2)(b) old at the time of the incident.*

- *PO Basnight worked between 7:30 p.m. on February 26, 2014 and 4:05 a.m. on February 27, 2014. He was assigned to anti-crime with PO Adlai Pinney. He was dressed in uniform and worked in either a black unmarked Ford or Chevy.*

Memo Book (encl. 7A-7B)

At 9 p.m., there was a gun run opposite 263 West 152nd Street. One male was stopped. § 87(2)(b) of § 87(2)(b), date of birth § 87(2)(b), was 6' tall and 230 lbs. He was wearing a black hooded jacket, blue jeans, and black sneakers. He was inside an SUV with Virginia license plate number § 87(2)(b). The CAT number was § 87(2)(b). A Stop and Frisk Report was prepared.

Stop and Frisk Report (encl. 7C-7E)

PO Basnight prepared UF-250 # § 87(2)(b) for the stop of § 87(2)(b) for suspected criminal possession of a weapon at 9 p.m. on February 26, 2014. § 87(2)(b) was stopped because he fit a description. On the Stop and Frisk Report, § 87(2)(b) was listed as being a 6' tall, § 87(2)(b)-old, 230 lb. black male with brown hair, brown eyes, and a heavy build. The duration of the stop was five minutes.

During the stop, § 87(2)(b) was placed against a wall/car because he was reaching for a suspected weapon. He was frisked due to furtive movements. He was searched because a hard object was felt. No weapon or contraband was found. He was not arrested or issued a summons. Additional circumstances were reports from a victim/witness and his proximity to the crime location. There is no indication on the Stop and Frisk Report that a firearm was ever pointed at § 87(2)(b).

CCRB Statement

PO Basnight was interviewed at the CCRB on July 10, 2014 (encl. 7F-7H).

At approximately 9:00 p.m. on February 26, 2014, PO Basnight and PO Pinney received a radio run regarding a person with a gun in the vicinity of 263 West 152nd Street in Manhattan. There was a description given in the call, but PO Basnight did not recall the details or nature of that description at the time of his CCRB interview. He did not recall whether a clothing description was given. The only thing he remembered was that the individual had an SUV and was supposedly in a parking lot on that block.

PO Basnight and PO Pinney responded to the scene. They drove along West 152nd Street at a speed of approximately five miles per hour. As they were driving, they observed an individual, who they later learned to be § 87(2)(b) inside of a NYCHA parking lot opposite 263 West 152nd Street – the only parking lot on that block. § 87(2)(b) had an SUV, though PO Basnight did not recall if he was inside or outside the vehicle. It was at a complete stop. There were only about ten or fifteen cars in the lot. None of the other vehicles were SUVs, and there were no other people there. There were other people on the street at the time, but none fit the description given in the call.

PO Basnight and PO Pinney were approximately twenty to thirty feet from § 87(2)(b) when they first noticed him. Although at the time of his CCRB interview PO Basnight could not recall the description that was given in the radio run, he remembered that § 87(2)(b) fit it. He and PO Pinney approached § 87(2)(b). At some point before actually stopping him, PO Basnight was able to discern § 87(2)(b)'s height and weight. He did not note if he could tell § 87(2)(b)'s age, and he did not recall if he could tell what § 87(2)(b) looked like from the street or if he was only able to make out his features once he approached him. It was dark at the time of the incident, but there were streetlights illuminating the area.

PO Pinney, who was driving at the time, parked the police vehicle about four or five feet away from § 87(2)(b) so that the vehicles were facing each other. PO Basnight exited from the passenger side of his vehicle and approached § 87(2)(b) with the intention of investigating the 911 call. Again, PO Basnight did not recall if § 87(2)(b) was inside or outside of the SUV at this point.

As PO Basnight exited his vehicle, he asked to see § 87(2)(b)'s hands for his safety. § 87(2)(b) § 87(2)(b) complied. PO Basnight did not recall if § 87(2)(b) said anything at this point. Neither PO Basnight nor PO Pinney drew or pointed their firearms at any point.

Since § 87(2)(b) matched the description provided over the radio, PO Basnight frisked him for weapons. He patted § 87(2)(b)'s clothing from top to bottom. He denied searching § 87(2)(b). During his CCRB interview, PO Basnight was presented with the Stop and Frisk report for the incident. He confirmed that he prepared the report. When questioned about why a search was noted on the form, he stated that the form was generic and that a search is "almost the same thing as a frisk." He also stated that he may have checked off the box in error. He did not specifically recall feeling a bulge during the frisk, but he stated that he may have felt a phone or a wallet. PO Basnight did not recall if he went into any of § 87(2)(b)'s pockets and did not recall what was inside them. He did not clarify the nature of the furtive movements to which he referred on the Stop and Frisk Report.

After frisking § 87(2)(b), PO Basnight requested his identification. PO Basnight then searched the "grabbable" areas of the SUV for weapons. He explained that the grabbable areas of the vehicle include the driver's side of the vehicle (both in the driver seat and in the area behind the driver) as well as the "passenger area," though he did not specify what part of the passenger area he meant. He opened the back passenger doors to look behind the driver seat and behind the front passenger seat. He also looked underneath these seats. PO Basnight searched the center console and had to remove the cover in order to look inside. Once he removed the cover, he visually inspected the areas that were in plain view. His reason for searching the center console was that it was a potential hiding spot for weapons. PO Basnight stated that no other areas were searched, though he did not recall if he opened the back hatch or ever looked inside of it.

PO Basnight did not recall if PO Pinney assisted with the vehicle search, but he believed that PO Pinney just watched § 87(2)(b) to make sure he did not attempt to escape. He did not recall if PO Pinney ever frisked or searched § 87(2)(b). He did not recall PO Pinney saying anything during the incident. There was nothing that occurred during the interaction with § 87(2)(b) that raised PO Basnight's suspicion that he might be in possession of a weapon. PO Basnight did not indicate that he ever questioned § 87(2)(b) about having a gun. Though PO Basnight did not specifically indicate whether the suspect was ever found, he indicated that he never learned the name of the suspect.

PO Basnight later noted that he was familiar with § 87(2)(b) prior to this interaction. He knew him as a drug dealer in the area. He had never personally arrested him, but he knew that he had been arrested by other officers. He did not recall any specific arrests and did not remember when he first learned about § 87(2)(b).

Subject Officer: PO ADLAI PINNEY

- *PO Pinney, a 5'11" tall, 245 lb. black male with black hair and brown eyes, was § 87(2)(b) old at the time of the incident.*
- *On the day of the incident, PO Pinney worked between 7:30 p.m. and 4:05 a.m. He was assigned to anti-crime with PO Jaysen Basnight. He was dressed in plainclothes and worked in vehicle number 235, a black Crown Victoria.*

Memo Book (encl. 8A-8C)

At 9 p.m., a report was prepared in regards to a gun run (SPRINT # 20901) at 263 West 152nd Street. One male matching the description was stopped opposite the location. § 87(2)(b) (6' tall, 230 lbs., date of birth § 87(2)(b)), of § 87(2)(b), was wearing a black hooded jacket, blue jeans, and black sneakers. He had Virginia plate number § 87(2)(b). He was in a parking lot with no lights and the engine running.

CCRB Statement

PO Pinney was interviewed at the CCRB on July 30, 2014 (encl. 8D-8E). PO Pinney's statement was generally consistent with PO Basnight's, except where noted below.

PO Pinney recalled that a clothing description (black hoodie, blue jeans, and black sneakers) was provided in the radio run. He did not recall if a physical description, or any other information, was given. There was no indication in the call that the individual was inside a vehicle. There was no information as to the direction the person was moving or where he was last seen.

PO Pinney confirmed that § 87(2)(b) was inside the NYCHA parking lot when he and PO Basnight first saw him. However, he stated that they were only about ten feet away from where he was parked in the lot. Furthermore, he recalled that § 87(2)(b) was sitting in the driver's seat of the SUV. He did not indicate whether the vehicle was in a parking spot or whether the interior lights were on. At the time, PO Pinney could tell that § 87(2)(b) was a black male, but he could not discern his height or weight. PO Basnight informed PO Pinney that § 87(2)(b) fit the description, so he entered the lot and parked the police vehicle about two feet away from § 87(2)(b)s. The vehicles faced one another. There were no other civilians in the parking lot or on the street at this time. There were no other officers around.

PO Pinney stated that when he and PO Basnight approached § 87(2)(b)s vehicle, they identified themselves as police officers with their shields. PO Basnight was the contact officer, and PO Pinney stood a couple of feet behind him. PO Basnight explained to § 87(2)(b) that they had received a radio run regarding a male with a firearm. He then asked § 87(2)(b) to step out of the vehicle. There was no other discussion before this. There was nothing, other than the description, that indicated § 87(2)(b) could be armed.

As soon as § 87(2)(b) stepped out of the vehicle, PO Basnight frisked him for weapons from his chest to his ankles. PO Basnight never entered any of § 87(2)(b)s pockets. PO Pinney did not participate in the frisk and never observed a bulge in § 87(2)(b)s clothing. During his CCRB interview, he viewed the Stop and Frisk Report for the incident. However, it did not refresh his recollection of PO Basnight searching § 87(2)(b).

After frisking § 87(2)(b) PO Basnight entered the SUV via the driver's side door and conducted a search. PO Pinney remained outside with § 87(2)(b) PO Basnight searched the driver seat and floor. PO Pinney did not know where else he searched. He did not see PO Basnight go inside any compartments, including the arm rest. He never saw him enter any other door or go to any other part of the car. He never saw him open the back hatch.

The frisk and car search yielded negative results for weapons, so PO Basnight prepared a Stop and Frisk Report and allowed § 87(2)(b) to leave. Although there was reason for PO Pinney to fear for his safety due to the nature of the call, neither he nor PO Basnight ever drew their firearms. § 87(2)(b) raised objections to the stop at some point, but PO Pinney did not recall exactly what he said.

Witness Officers: PO MELANIE PAGAN-MERRITT & PO KARINA BONILLA

- *PO Pagan-Merritt, a 5'6" tall, 190 lb. Hispanic female with brown hair and brown eyes, was § 87(2)(b) years old at the time of the incident*
- *PO Bonilla, a 5'7" tall, 150 lb. Hispanic female with brown hair and brown eyes, was § 87(2)(b) old at the time of the incident.*
- *On the day of the incident, PO Pagan-Merritt and PO Bonilla worked between 3 p.m. and 11:35 p.m. They were assigned to Patrol Sectors N and P. They were dressed in uniform and worked in marked vehicle number 4903.*

Memo Book (encl. 9A-9C)

PO Pagan-Merritt and PO Bonilla had the same memo book entries. At 8:53 p.m., they responded to a possible crime (man with a firearm) at 263 West 152nd Street. A description was provided of a tall – PO

Bonilla's memo book specified 6'2" - slim black male with jeans, a hoodie, and dark sneakers. At 9:01 p.m., they arrived on scene. At 9:06 p.m., they marked the job as unfounded, no one at the location.

CCRB Statements

PO Pagan-Merritt was interviewed at the CCRB on September 16, 2013 (encl. 9D-9E). PO Bonilla was interviewed at the CCRB on September 23, 2014 (encl. 10C-10D). Their statements were generally consistent and are summarized below, with inconsistencies noted.

PO Pagan-Merritt and PO Bonilla responded to the scene after receiving a radio run of a man with a firearm. As they were canvassing the area, they noticed that two anti-crime officers, PO Basnight and PO Pinney, had an individual, identified by the investigation as § 87(2)(b) stopped in his vehicle. Due to the nature of the call, they wanted to make sure PO Basnight and PO Pinney were all right. They drove over to the location of the vehicle stop, where they simply made sure PO Basnight and PO Pinney were okay and left.

Neither PO Pagan-Merritt nor PO Bonilla had any conversation with § 87(2)(b). They never saw the anti-crime officers draw their firearms or frisk or search § 87(2)(b). PO Pagan-Merritt recalled that one or both of the anti-crime officers was searching the vehicle when they arrived. She did not recall which of the officers was inside the vehicle, and she could not see where they were searching. She could not see if anyone went inside the arm rest and did not remember seeing any officer open up the trunk or look underneath the seats. PO Bonilla did not recall a vehicle search at all.

NYPD Documents

Event # § 87(2)(b) Communications (encl. 11C-11J)

At approximately 8:53 p.m., a male named § 87(2)(b) who did not know his callback number, called 911 and stated that there was an emergency involving a gun in the vicinity of 263 West 152nd Street in Manhattan, between 8th Avenue and Macombs Place. He stated that a man named § 87(2)(b) asked him if he wanted to purchase a .25 gun so he could buy ten bags of crack. He showed § 87(2)(b) the gun. § 87(2)(b) told him, "No," and told him to find someone else. § 87(2)(b) then gave the gun to his friend to sell it outside. The last time § 87(2)(b) saw the friend, he was going through Bradhurst Avenue to get to the NYCHA housing development. He went through the parking lot, but § 87(2)(b) did not know what building he went into. He provided the following description: a 6'2" to 6'3" tall, slim, twenty-five to twenty-seven-year old black male wearing blue pants, a black jacket with a black hoodie, and dark-colored sneakers, which appeared to be blue or black. The ANI-ALI was § 87(2)(b).

At 8:56 p.m., the event was created. The 911 dispatcher reported to 32nd Precinct Patrol Sector N officers that there was a possible male with a firearm at 263 West 152nd Street between 8th Avenue and Macombs Place. She stated that a male was trying to sell a firearm at the location. She provided the following description: a 6'2" tall, slim, twenty-five to twenty-seven-year-old black male wearing blue pants, a black jacket with a hoodie, and dark sneakers. A male officer requested that the dispatcher try the callback to see if the perpetrator had a "vehicle or anything." About twenty seconds later, the dispatcher reported that there was no callback for the complainant. She also advised the officers that the perpetrator was last seen on Bradhurst Avenue, going through the housing development. He went through the parking lot, but the caller did not know what building he went into. The officer then asked where the callback went to. The dispatcher reported that it went to a cellphone and that the caller gave no callback. A male officer then stated that he arrived in the parking lot. He requested no lights and sirens.

At 9 p.m., the Housing IRT Captain arrived in the parking lot. Officers from the 32nd Precinct Patrol Sector N arrived at 9:01 p.m. There is no indication of when the anti-crime officers arrived.

32nd Precinct Tour 3 Roll Call (encl. 11L-11T)

PO Basnight was assigned to anti-crime in vehicle number 235. Although PO Pinney is listed as

being assigned to conditions, he was also assigned to vehicle number 235. No captain was on duty.

Housing IRT Tour 3 Roll Call (encl. 11V-11W)

There are no captains listed on the roll call.

Daily Vehicle Assignment Sheet (encl. 11U)

Unmarked vehicle number 235 is listed as being assigned to the stationhouse during tour 3. It has license plate number § 87(2)(e), § 87(2)(f) There is no vehicle with license plate number § 87(2)(e), § 87(2)(f)

Status of Civil Proceedings (encl. 13A)

- § 87(2)(b) has not filed a notice of claim with the City of New York as of October 17, 2014 with regard to the incident.

Civilian Criminal History (encl. 12A-12Z)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian CCRB History

- § 87(2)(b) has been involved in the following CCRB complaints (encl. 3A):
 - § 87(2)(b) [REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]

Subject Officers CCRB History

- PO Jaysen Basnight has been a member of the service for nine years and there is one substantiated CCRB allegation against him. In Case # 200706401, a discourtesy allegation was substantiated against PO Basnight with recommended command discipline, which he received. (encl. 2A).
- PO Adlai Pinney has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 2B-2C).

Conclusion

Identification of Subject Officers

- § 87(2)(b) stated that the two officers arrived to the scene in unmarked black Chevy Impala (license plate # § 87(2)(e), § 87(2)(f) There was no vehicle with that license plate number listed on the Daily Vehicle Assignment Sheet. However, vehicle number 235 had license plate number § 87(2)(e), § 87(2)(f) PO Basnight and PO Pinney were assigned to this vehicle at the time of the incident. Both of them had memo book entries pertaining to the incident and confirmed that they stopped § 87(2)(b) during their CCRB interviews. § 87(2)(g)
§ 87(2)(b) stated that one of the officers searched his vehicle during the incident, while the other just stood with him. PO Basnight admitted that he searched the vehicle, while PO Pinney

§ 87(2)(g) stated that he remained outside. § 87(2)(g)

§ 87(2)(b) stated that the officer who searched his vehicle also pointed his gun at § 87(2)(b)

§ 87(2)(g)

Allegations Not Pleaded

- Frisk and search allegations were not pleaded against PO Basnight because § 87(2)(b) did not make these allegations.

Investigative Findings and Recommendations

Allegation A – Force: PO Jaysen Basnight pointed his gun at § 87(2)(b)

Allegation B – Abuse of Authority: PO Jaysen Basnight stopped § 87(2)(b)

Allegation C – Abuse of Authority: PO Adlai Pinney stopped § 87(2)(b)

It is undisputed that around 8:53 p.m. on February 26, 2014, PO Basnight and PO Pinney received a radio run for a male with a gun at 263 West 152nd Street with the following description: a 6'2" tall, slim, twenty-five to twenty-seven-year-old black male wearing blue pants, a black jacket with a hoodie, and dark sneakers, last seen going through a parking lot and into a nearby housing development. The dispatcher had no information about whether the individual had a vehicle and had no working callback number for the complainant. The dispatcher informed the officers that the call went to a cellphone and that the caller gave no callback.

§ 87(2)(b) reported that he was sitting alone in his vehicle in a NYCHA parking lot, located across the street from 263 West 152nd Street in Manhattan. His engine was off, but he was listening to music while he waited for a street parking spot. He was wearing a black hoodie, dark gray jeans, and black work boots. While he was waiting, PO Basnight and PO Pinney pulled into the parking lot in a black unmarked Chevy Impala and parked parallel to § 87(2)(b)'s vehicle. PO Pinney immediately got out of the police vehicle and approached the driver's side of § 87(2)(b)'s vehicle. While still in the police vehicle, PO Basnight drew his gun and pointed it at § 87(2)(b) saying, "Let me see your hands!" § 87(2)(b) complied. PO Basnight exited the vehicle, holstered his gun, and approached the driver's side of § 87(2)(b)'s vehicle. He requested § 87(2)(b)'s license and registration. § 87(2)(b) provided this documentation. PO Basnight then instructed him to get out of the vehicle.

Based on § 87(2)(b)'s and PO Pinney's statements, the investigation determined that § 87(2)(b) was in his SUV when they first saw him. Although, at the time of their CCRB interviews, neither PO Pinney nor PO Basnight recalled what description was provided over the radio, they both remembered that they believed § 87(2)(b) fit that description at the time of the incident. Neither of them indicated any other reason for approaching him. When they approached him, they both got out of their vehicle. According to PO Basnight, he asked § 87(2)(b) to see his hands, and § 87(2)(b) complied. According to PO Pinney, PO Basnight also explained to § 87(2)(b) that they had received a radio run in regards to a male with a firearm. § 87(2)(b) was then asked to get out of the vehicle, where he was promptly frisked by PO Basnight. Neither officer admitted to ever having his firearm drawn or seeing his partner with his firearm drawn.

On the Stop and Frisk Report prepared for § 87(2)(b)'s stop, PO Basnight indicated that the sole reason § 87(2)(b) was stopped was because he fit the description of the perpetrator in the above radio run. It also indicates that § 87(2)(b) was frisked because of furtive movements, though PO Basnight did not claim he made any furtive movements during his CCRB interview. There is no indication on the Stop and Frisk Report that a firearm was ever pointed at § 87(2)(b).

An officer may stop a person when he reasonably suspects that such person has committed, is committing, or is about to commit a crime. *People v. DeBour*, 40 N.Y.2d 210 (1976) (encl. 1A-1K). An anonymous tip provides founded suspicion that criminality is afoot. *People v. Joseph*, 38 A.D.3d 403 (App. Div. 1st Dep't. 2007) (encl. 1L-1M). However, it cannot provide reasonable suspicion to justify a

seizure, except where that tip contains predictive information – such as information suggestive of criminal behavior – so that the police can test the reliability of a tip, or when there is sufficient indicia of reliability. People v. Moore, 6 N.Y.3d 496 (2006) (encl. 1N-1Q).

The following factors are used in determining whether a complainant is considered to be anonymous: whether officers have a means of verifying the information in the call, such as in People v. Herold, 282 A.D.2d (2001) (encl. 1R-1V), where a call emanated from a specific apartment in the building outside of which a man with a gun was involved in a dispute, and where the officers were buzzed into the building after ringing the specified apartment within a minute of receiving the radio report; whether the caller provided self-identifying information, such as in People v. Dixon, 289 A.D.2d 937 (2001) (encl. 1W-1X), where the caller partially identified himself by name, provided information about his location, and agreed to meet the officers at a specific street corner; and whether the caller is readily identifiable, such as in People v. Gordon, 831 N.Y.S.2d 834 (2006) (encl. 1Y-1AA), where the call originated from a named pizzeria at a known address, and where the telephone number for the establishment was set forth in the Sprint report.

In Navarette v. California, the Supreme Court noted that while tips in 911 calls are not per se reliable, a reasonable officer could conclude that a false tipster would think twice before using the 911 emergency system. Navarette v. California, 134 S. Ct. 1683 (2014) (encl. 1HHH-1SSS)

An officer may draw and point his firearm when he has a reasonable fear for his own or another person's safety. NYPD v. Gliner, OATH Index No. 955/00 (Sept. 6, 2000) (encl. 1BB-1TT).

Here, while the information provided by the 911 call may not have met the aforementioned criteria (the caller did not indicate his location and did not know the telephone number from which he was calling), the dispatcher did convey to the officers that the callback went back to a cellphone.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation D – Abuse of Authority: PO Jaysen Basnight searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that after he exited his vehicle, PO Basnight entered through the driver's side door of the vehicle. Once inside, PO Basnight looked under the front seat and inside the compartment in the arm rest, which was closed when § 87(2)(b) exited the vehicle. PO Basnight then went to the passenger side of the vehicle and searched there. He also opened the back hatch and looked inside. PO Pinney stood with § 87(2)(b) while PO Basnight searched.

PO Basnight confirmed that he searched § 87(2)(b)'s vehicle after frisking him. He said that he searched the “grabbable” areas for weapons. He explained that the grabbable areas of the vehicle include the driver's side of the vehicle (both in the driver seat and in the area behind the driver) as well as the passenger area. During the search, he opened the back doors to look behind the driver seat and behind the front passenger seat. He also looked underneath these seats. PO Basnight also admitted to searching the center console and stated that he had to remove the cover in order to look inside. Once he removed the cover, he visually inspected the areas that were in plain view. His reason for searching the center console was that it was a potential hiding spot for weapons. PO Basnight stated that no other areas were searched, though he did not recall if he opened the back hatch or ever looked inside of it. PO Basnight stated that

there was nothing that occurred during his interaction with § 87(2)(b) that raised his suspicion that he might be in possession of a weapon.

§ 87(2)(g)

Although the Stop and Frisk report notes that § 87(2)(b) was making furtive movements and reaching for a suspected weapon, PO Basnight never mentioned either of these factors during his CCRB interview. In fact, when questioned about another section of the Stop and Frisk Report where a search is noted, he stated that the form was generic and indicated that he may have checked off the box in error, an admission that at least part of the report was potentially inaccurate.

A police officer, acting on reasonable suspicion that criminality is afoot and on an articulable basis to fear for his own safety, may intrude upon a person or personal effects of the suspect only to the extent that it is actually necessary to protect himself from harm while he conducts the inquiry. Absent probable cause, such an intrusion may not extend to the items within the passenger compartment of a suspect's vehicle solely on the theory that if the suspect is not placed under arrest, he will be permitted to reenter his automobile, and will then have access to any weapons inside. People v. Torres, 74 N.Y.2d 224 (1989) (encl. 1UU-1AAA).

A combination of movements within a car suggesting a defendant is reaching for something that might be a weapon, together with some other suggestive factors, is sufficient to justify only the limited intrusion of searching the area where a defendant's movements took place. People v. Newman, 96 A.D.3d 34 (2012) (encl. 1BBB-1GGG).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date